



# Water Charges Act 1976

## 1976 CHAPTER 9

An Act to make provision for the refund of certain charges made by water authorities in England and Wales in respect of the financial years 1974-75 and 1975-76 and as to the scope of the powers of such authorities to make charges. [25th March 1976]

**B**E IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) On 1st April 1976 it shall become the duty of every water authority to refund—

- (a) all charges for sewerage or sewage disposal paid in pursuance of the Water Authorities (Collection of Charges) Order 1974 or the Water Authorities (Collection of Charges) Order 1975 in respect of any hereditament which was without sewerage on the relevant date, together with any associated legal costs, and
- (b) all water rates or charges paid for the financial year 1974-75 or the financial year 1975-76 in respect of any hereditament for which on the relevant date no supply of water was made available by them.

(2) In subsection (1)(a) above “associated legal costs” means any costs awarded in relation to a summons under Part VI of the General Rate Act 1967 issued solely in respect of non-payment of a general services charge under one or other of the orders mentioned in that paragraph or in relation to the

Duty of water authorities to refund certain charges. S.I. 1974 No. 448. S.I. 1975 No. 396.

1976 c. 9.

obtaining of a warrant of distress under the said Part VI in respect of such a non-payment.

(3) It is hereby declared that, in calculating sums to be refunded for the financial year 1974-75 under subsection (1) above, a water authority may deduct, in respect of any such charges or water rates as are mentioned in that subsection, amounts which by reason of rate relief were not paid by the person who would otherwise have been liable to pay them, and may retain any such amounts.

(4) Subject to subsection (5) below, the relevant date for the determination of entitlement to a refund for either of the financial years mentioned in subsection (1) above is the beginning of the year in question.

(5) If a hereditament was not liable to be rated at the beginning of one of those financial years, the relevant date for the determination of entitlement to a refund for that year is the date on which it was first so liable.

(6) A water authority may recover the aggregate amount of sums refunded under subsection (1)(a) above from persons liable to be rated in respect of hereditaments with sewerage at any time in the financial year 1976-77 and the aggregate amount of sums refunded under subsection (1)(b) above from persons liable to be rated in respect of hereditaments for which a supply of water is made available by them at any time in that year.

1973 c. 37.

(7) Sums falling to be so recovered may be recovered by the imposition of charges under section 30 of the Water Act 1973 as if they were payable in respect of services performed for the persons mentioned in subsection (6) above during the financial year 1976-77.

(8) A hereditament is without sewerage for the purposes of this section—

(a) if the following conditions are satisfied in relation to it, namely—

(i) it is not drained by a sewer or drain connecting, either directly or through an intermediate sewer or drain, with a public sewer provided for foul water or surface water or both, and

(ii) the person liable to be rated in respect of the hereditament does not have the use, for the benefit of the hereditament, of facilities which drain to a sewer or drain so connecting, or

(b) if it is subject to special rating and is of a description specified for the purposes of this section by an order under section 254 of the Local Government Act 1972.

1972 c. 70.

(9) At the end of paragraph 5(2)(cc) of Schedule 6 to the Water Act 1973 (which was added to paragraph 5(2) of that

Schedule by paragraph 14 of Schedule 7 to the Local Government Act 1974 c. 7. there shall be inserted the following paragraphs:—

“(cca) as to the making by a local authority on behalf of a water authority of refunds under the Water Charges Act 1976;

(ccb) specifying for the purposes of section 1 of the Water Charges Act 1976 any description of hereditament which is subject to special rating, as defined in that Act;

(ccc) for the calculation by a local authority of amounts to be refunded under the said Act of 1976;

(ccd) as to the basis or bases on which such amounts are to be calculated (including, without prejudice to the generality of this paragraph, a special basis or bases for the calculation of refunds in respect of hereditaments specified by virtue of paragraph (ccb) above);”.

2.—(1) The following subsections shall be substituted for section 30(1) of the Water Act 1973:—

“(1) Subject to the provisions of this Act, a water authority shall have power to fix such charges for the services performed, facilities provided or rights made available by them (including separate charges for separate services, facilities or rights or combined charges for a number of services, facilities or rights) as they think fit, and to demand, take and recover such charges—

(a) for services performed, facilities provided or rights made available in the exercise of any of their functions, from persons for whom they perform the services, provide the facilities or make the rights available, and

(b) without prejudice to paragraph (a) above,—

(i) for services performed, facilities provided or rights made available in the exercise of functions under section 14 above, from persons liable to be rated in respect of hereditaments to which this sub-paragraph applies, and

(ii) for services performed, facilities provided or rights made available in the exercise of functions specified in subsection (1B) below, from all persons liable to be rated in respect of hereditaments in their area or particular classes of such persons.

(1A) Subsection (1)(b)(i) above applies to a hereditament if—

(a) it is drained by a sewer or drain connecting, either directly or through an intermediate sewer or drain,

with a public sewer provided for foul water or surface water or both, or

(b) the person liable to be rated in respect of the hereditament has the use, for the benefit of the hereditament, of facilities which drain to a sewer or drain so connecting, or

(c) it is subject to special rating.

(1B) The functions mentioned in subsection (1)(b)(ii) above are functions under—

(a) the Rivers (Prevention of Pollution) Acts 1951 to 1961;

(b) sections 20, 21 and 22 of the Water Act 1973 (recreation, nature conservation and amenity):

(c) the Control of Pollution Act 1974;

(d) the Salmon and Freshwater Fisheries Act 1975;

(e) any local statutory provision conferring functions analogous to those mentioned in paragraphs (a) to (d) above; and

(f) any local statutory provision conferring functions with respect to navigation”.

(2) The following subsection shall be added at the end of the said section 30:—

“(11) In this section—

“hereditament” has the meaning assigned to it by section 115(1) of the General Rate Act 1967, and

“special rating” means rating under any enactment contained in sections 31 to 34 of the General Rate Act 1967 or under section 52 of the Post Office Act 1969, and includes rating under any order made by virtue of section 19 of the Local Government Act 1974 amending any of those sections.”.

1973 c. 37.

(3) It is hereby declared that the powers conferred on a water authority by section 30 of the Water Act 1973 have always included power to charge all persons liable to be rated in respect of hereditaments in their area or particular classes of such persons for any services performed, facilities provided or rights made available in the exercise of functions specified in subsection (1B) of that section.

(4) At the end of paragraph 5(2) of Schedule 6 to the Water Act 1973 there shall be added the following sub-paragraph:—

“(3) Without prejudice to the generality of sub-paragraph (2)(c) above, an order may include provision for calculations

on a special basis or bases of amounts payable in respect of hereditaments specified by virtue of sub-paragraph (2)(ccb) above.”.

3.—(1) This Act may be cited as the Water Charges Act 1976. Citation etc.

(2) The Water Act 1973 and this Act may be cited together as the Water Acts 1973 and 1976.

(3) In this Act—

“hereditament” has the meaning assigned to it by section 115(1) of the General Rate Act 1967; 1967 c. 9.

“public sewer” has the meaning assigned to it by section 38(1) of the Water Act 1973; and 1973 c. 37.

“special rating” means rating under any enactment contained in sections 31 to 34 of the General Rate Act 1967 or under section 52 of the Post Office Act 1969 and includes 1969 c. 48.  
rating under any order made by virtue of section 19 of the Local Government Act 1974 amending any of those 1974 c. 7.  
sections.

(4) Except in so far as the context otherwise requires, any reference in this Act to an enactment shall be construed as a reference to that enactment as amended, applied or extended by or under any other enactment, including this Act.

(5) This Act extends to England and Wales only.